

2012 WL 1647897 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Edwin FONTANEZ and Luis Pabon, Plaintiffs,

v.

CITY OF NEW YORK, The New York City Police Department, P.O. Jason Bronstein,
P.O. **Charles Batista**, P.O. Ryan A. Conroy and Officer(s) John and James Doe, names
being fictitious and meant to designate additional offending officers, Defendants.

No. 030816-2012.
May 1, 2012.

Summons

[Jonathan L. Gleit](#), Esq., Attorney for Plaintiffs, 888 Grand Concourse, Suite 1-O, Bronx, NY 10451, (718) 742-0200.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y. April 30, 2012

VERIFIED COMPLAINT

Plaintiffs, by their attorney, *Jonathan L. Gleit, Esq.*, complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PlaintiffsS EDWIN FONTANEZ and LUIS PABON**

1. At the time of the commencement of this action, Plaintiffs EDWIN FONTANEZ and LUIS PABON were and still is are residents of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about April 1, 2010, P.O. JASON BRONSTEIN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about April 1, 2010, at approximately 2:45 A.M., P.O. JASON BRONSTEIN was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about April 1, 2010, P.O. **CHARLES BATISTA** was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about April 1, 2010, at approximately 2:45 A.M., P.O. **CHARLES BATISTA** was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about April 1, 2010, P.O. RYAN A. CONROY was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
10. That on and about April 1, 2010, at approximately 2:45 A.M., P.O. RYAN A. CONROY was working and acting within the scope of his employment as a Police Officer, and under the color of law.
11. That on and about April 1, 2010, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
12. That on and about April 1, 2010, at approximately 2:45 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
13. That on or about April 1, 2010 at approximately 2:45 A.M., in front of 749 Lydig Avenue, Bronx, New York, the Plaintiffs EDWIN FONTANEZ and LUIS PABON were improperly arrested and confined without proper authority, justification or privilege, having no reason in law or in fact to arrest or confine EDWIN FONTANEZ and LUIS PABON.
14. That the defendants, their agents, servants and/or employees arrested the plaintiffs EDWIN FONTANEZ and LUIS PABON without privilege and without any basis in law or fact and without reasonable, probable or just cause or justification.
15. That the defendants, their agents, servants and/or employees arrested the plaintiffs EDWIN FONTANEZ and LUIS PABON without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.
16. That the defendants P.O. JASON BRONSTEIN, P.O. **CHARLES BATISTA**, P.O. RYAN A. CONROY, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal actions against plaintiffs thereby causing them to suffer an unlawful seizure of their person and property.
17. That defendants, their agents, servants and/or employees continued to prosecute Plaintiffs EDWIN FONTANEZ and LUIS PABON and deny them freedom after they knew, or should have known, they were innocent of all charges being alleged against them.
18. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs EDWIN FONTANEZ and LUIS PABON, who was aware of their unlawful detention and confinement and took their property without any basis in law or fact, thereby causing freight, shock, emotional distress and physical consequences.

19. The commencement of the criminal proceedings, which were assigned Docket No.s 2010BX020419 and 2010BX020416, respectively, in the Supreme Court of the State of New York, Criminal Division, were malicious and begun in malice and without probable cause that the proceedings could succeed by the Defendants.

20. That on February 8, 2011 all criminal charges were dismissed by Hon. Harold Adler, an Acting Justice of the Supreme Court, Criminal Division, and the prosecution was terminated in plaintiffs' favor.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting all persons at a given location without individualized reasonable or probable cause as to each arrested individual, and for nefarious, unlawful reasons, including to satisfy arrest quotas, without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting invasive searches in public and while in custody when there is no reasonable basis to conduct an invasive search and without individualized reasonable articulable suspicion of possession of evidence, are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances. Furthermore, officers of the New York City Police Department subject Precincts routinely engage in the use of practices such as illegal, unlawful and unnecessary searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, and testify falsely so often that such conduct is considered routine by the offending officers, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs and by specifically engaging in said conduct specifically with regard to Plaintiffs herein. Said policy and procedure of having productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals. Said productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by statements repeatedly made by defendants, to wit, in sum and substance, "we have to take everyone" and has occurred to such individuals such as ADEUNA CABRAL, an infant over the age of 14 years by them mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M.; and LISA CAMACHO and JESSICA THEMNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 2:45 A.M., at 3321 Seymour Avenue, Bronx, New York; and SELVIN SPENCER, THEMBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue, Bronx, New York; TREENA WILSON, ERIN OLIVER, ERIC OLIVER and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30 A.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse, and a significant number of others similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

22. That no negligence or actions on the part of the plaintiffs EDWIN FONTANEZ and LUIS PABON contributed to the occurrences alleged herein in any manner whatsoever.

23. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of [Title 42 U.S.C. 1983, et seq.](#), by policy, procedure and act,

deprived the plaintiffs EDWIN FONTANEZ and LUIS PABON of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of them person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under [Title 42 U.S.C. 1983, et seq.](#)

24. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

25. That as a result of the foregoing, the plaintiffs EDWIN FONTANEZ and LUIS PABON were damaged in sums which exceed the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFFS EDWIN FONTANEZ and LUIS PABON**

26. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 25 as though more fully set forth herein.

27. That on or about May 3, 2011, and within 90 days after the claim herein sued upon, plaintiffs caused Notices of Claim, sworn to by or on behalf of the claimants EDWIN FONTANEZ and LUIS PABON, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimant and claimants' attorney, the nature of the claim, the time when, the place when, and the manner in which the claims arose and items of damages or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, [GML 50-h](#) hearings were held for each claimant on August 17, 2011 and this action was commenced on the claims within one year and ninety days after the happening of the events upon which the claims are based.

28. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

29. That on or about April 1, 2010 at approximately 2:45 A.M., in front of 749 Lydig Avenue, Bronx, New York, the Plaintiffs EDWIN FONTANEZ and LUIS PABON were improperly arrested and confined without proper authority, privilege or justification or reasonable or probable cause, having no reason in law or in fact to arrest EDWIN FONTANEZ and LUIS PABON.

30. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiffs EDWIN FONTANEZ and LUIS PABON of Due Process under Law.

31. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. JASON BRONSTEIN, P.O. **CHARLES BATISTA**, P.O. RYAN A. CONROY, and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

32. That the Plaintiffs EDWIN FONTANEZ and LUIS PABON, being aware of their unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JASON BRONSTEIN and OFFICER[S] JOHN AND / OR JAMES DOE.

33. That the defendants, their agents, servants and/or employees prosecuted criminal actions against the plaintiffs EDWIN FONTANEZ and LUIS PABON without any basis in law or fact.

34. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiffs EDWIN FONTANEZ and LUIS PABON due to prejudice or with malice and without any basis in law or fact.

35. That the defendants P.O. JASON BRONSTEIN, P.O. **CHARLES BATISTA**, P.O. RYAN A. CONROY, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiffs EDWIN FONTANEZ and LUIS PABON thereby causing them to suffer an unlawful seizure of person and property.

36. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs EDWIN FONTANEZ and LUIS PABON and deny them freedom after they knew, or should have known, they were innocent of all charges being alleged against them.

37. The commencement of the criminal proceedings, which were assigned Docket No.s 2010BX020419 and 2010BX020416, respectively, in the Supreme Court of the State of New York, Criminal Division, were malicious and begun in malice and without probable cause that the proceedings could succeed by the Defendants.

38. That on February 8, 2011 all criminal charges were dismissed by Hon. Harold Adler, an Acting Justice of the Supreme Court, Criminal Division, and the prosecution was terminated in plaintiffs' favor.

39. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecutions.

40. As a result of the malicious prosecutions, plaintiffs were deprived of liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and were otherwise damaged and injured. The plaintiffs were required to make court appearances to defend their liberty against these unjust charges for a period of over eleven months, and suffered thereby.

41. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

42. That as a result of the foregoing, the Plaintiffs EDWIN FONTANEZ and LUIS PABON were damaged in sums which exceed the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFFS EDWIN FONTANEZ and LUIS PABON**

43. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 42 as though more fully set forth herein.

44. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

45. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the utilization of invasive search procedures carried out in public and within the view of the general public.

46. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiffs EDWIN FONTANEZ and LUIS PABON were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiffs were made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiffs and for the purchase of drugs and medicines, and that Plaintiffs were and in the future will be prevented from attending to Plaintiffs' usual vocation and avocations; all to the Plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

47. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

WHEREFORE, Plaintiffs demand judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y. April 30, 2012

By: **JONATHAN L. GLEIT, ESQ.**

Attorney for Plaintiffss

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